

TERMS OF USE — ECONSULT AFRICA FORECAST ARENA

Effective date: 25 March 2026

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These Terms of Use (“Terms”) form a legally binding agreement between you (“you” or “User”) and ECONSULT AFRICA ECONOMIC CONSULTING SERVICES LIMITED, a Kenya-based economic intelligence and research services provider (“Econsult,” “we,” “us,” or “our”), governing your access to and use of Forecast Arena (the “Platform”), including any associated sites, mobile experiences, APIs (if any), and related services.

If you do not agree to these Terms, do not use the Platform.

1. Acceptance and contract formation

1.1 Clickwrap acceptance. By creating an account, accessing the Platform, submitting a forecast, or making any forecast allocation, you confirm that you have read, understood, and agree to be bound by these Terms.

1.2 Additional policies. These Terms incorporate by reference (where applicable): (a) our Privacy Notice; (b) any rules or specifications displayed for a particular Forecast Question (defined below) (“Participation Rules”); and (c) any payment service provider terms that apply to your chosen payment method.

1.3 Authority. If you use the Platform on behalf of an organization, you represent that you have authority to bind that organization to these Terms, and “you” includes that organization.

2. Platform identity and purpose

2.1 What Forecast Arena is. Forecast Arena is a crowdsourced economic expectations aggregation platform and interactive economic research instrument designed to collect, analyze, and publish real-time sentiment and consensus probability indicators about economic outcomes.

2.2 Public-interest and research rationale. The Platform is intended to contribute to economic literacy, expectations analysis, transparency, and public-interest market intelligence. Users participate by expressing informed forecasts based on their own analysis, judgment, and engagement with macroeconomic data.

2.3 What the Platform is not. To the maximum extent permitted by applicable law, you acknowledge and agree that Forecast Arena is not offered, designed, or operated as, and must not be used as:

- (a) a gambling, betting, or gaming product (including any sportsbook, bookmaker, casino, or lottery);
- (b) a securities exchange, derivatives exchange, event-contract trading venue, or financial trading platform;
- (c) an investment product, collective investment scheme, or arrangement for pooling funds for investment purposes;
- (d) a deposit-taking business, bank, microfinance institution, or savings product; or
- (e) an e-money wallet or stored-value service, unless and only to the extent explicitly stated in writing under a separate product, licensing posture, and user agreement.

2.4 No “house” participation. Econsult does not take the opposite side of User forecast positions, does not operate a “house,” and does not set odds. Any consensus probabilities or sentiment indicators are generated by User activity and Platform mechanics, not by Econsult pricing risk.

3. Eligibility and access

3.1 Age. You must be at least 18 years old to use the Platform. We may impose a higher age threshold in specific jurisdictions or for specific features.

3.2 Jurisdictional eligibility. The Platform may be accessible from multiple countries, but not all features are available everywhere. We may restrict, geofence, or prohibit access in any territory or for any User category where offering the Platform could create legal, regulatory, sanctions, AML/CTF, tax, or operational exposures.

3.3 Your responsibility. You are responsible for ensuring that your use of the Platform (including any monetary participation features) is lawful in your location and under any rules that apply to you (including employer, professional, or public-sector ethics rules). We do not provide legal advice.

3.4 Refusal of service. We may decline to open an account, or may restrict features, where we reasonably determine that access would create risk to Platform integrity, data integrity, compliance posture, or user safety.

4. Account registration and security

4.1 Accurate information. You agree to provide accurate and complete information and to keep it current.

4.2 One account. Unless we approve otherwise in writing, you may maintain only one account. Multi-accounting (including via nominee accounts) is prohibited.

4.3 Security. You are responsible for safeguarding credentials and for all activity conducted through your account, whether authorized by you or not. Notify us promptly of suspected compromise.

4.4 Professional conduct. If you are a regulated professional (e.g., finance, public service, research institution), you represent that you will comply with your applicable codes and policies when participating.

5. Forecast Questions and participation modes

5.1 Forecast Questions. The Platform offers questions relating to defined economic outcomes (“Forecast Questions”), each with Participation Rules including: (a) the outcome definition; (b) the forecast window; (c) the settlement date/time; (d) the specified data source(s) for settlement; and (e) edge cases (e.g., revisions, missing data, publication delays).

5.2 Non-monetary participation. Some features may allow non-monetary forecasting and scoring. Those features remain subject to Platform integrity rules and may still require KYC/verification in certain circumstances.

5.3 Monetary participation as a signal mechanism. If enabled, the Platform may allow Users to commit a defined, fixed-value participation amount to a Forecast Question (“Participation Amount”) and submit a forecast allocation (“Forecast Allocation”). The purpose is to encourage honest signal revelation and informed participation, not to offer games of chance, wagering entertainment, speculative trading, or investment activity.

5.4 No leverage; no borrowing. Forecast Allocations are made only with the Participation Amount you commit for that Forecast Question. No borrowing, leverage, margin, credit extension, or financing is offered or permitted.

5.5 No secondary market; no transferability. Forecast Allocations are personal to the User account, are not transferable, assignable, or resalable, and may not be dealt in off-platform.

5.6 Participation caps. We may apply caps per Forecast Question, per day, per month, per User category, or per jurisdiction, and may adjust caps dynamically to protect users and Platform integrity.

6. Fees and charges

6.1 Service fees. We may charge platform/service fees, clearly disclosed at the point of participation, for administration, infrastructure, compliance controls, product operations, and payment handling (“Service Fees”).

6.2 Fees are not a margin. Service Fees are operational and service charges. They are not a bookmaker margin, house edge, trading spread, or investment management fee.

6.3 Taxes. You are responsible for any taxes that may apply to your use of the Platform, except where we are required by law to withhold or report. We may request tax-related information where necessary.

7. Payments and funds handling

7.1 Transaction-specific nature. If monetary participation is enabled, Participation Amounts are paid for a specific Forecast Allocation. They are not deposits, savings, stored value, or a general-purpose customer balance.

7.2 No custody promise. Unless expressly stated otherwise under a separately documented and licensed service, we do not hold funds as a custodian or trustee for you. Funds flow may be facilitated via licensed third-party payment providers, and you may be subject to their terms.

7.3 Payment processing and reconciliation. We may hold, delay, reconcile, net, reverse, or refuse transfers where reasonably required for verification, compliance, fraud review, technical error resolution, legal obligations, dispute handling, or to protect data integrity and Platform integrity.

7.4 Chargebacks and reversals. If your payment is reversed, charged back, or otherwise invalidated, we may (a) cancel affected Forecast Allocations; (b) reduce or cancel any pending distributions; and/or (c) suspend your account pending review.

7.5 No interest. We do not pay interest or any time-based value on Participation Amounts or pending distributions.

8. Accuracy-based distributions and user risk acknowledgements

8.1 Distributions. Where enabled, the Platform may make accuracy-based distributions to Users whose forecasts were more accurate, as determined by the Participation Rules and scoring/distribution methods disclosed for the Forecast Question (“Accuracy-Based Distribution”).

8.2 Not returns; not profits. Any Accuracy-Based Distribution is a participation incentive linked to forecasting accuracy. It is not an investment return, yield, profit, or trading gain.

8.3 No guarantee. We do not guarantee that you will receive any Accuracy-Based Distribution. You may receive none, and you may lose some or all of the Participation Amount committed to a Forecast Allocation.

8.4 Skill-based nature. You acknowledge that economic forecasting requires skill, analysis, judgment, and engagement with macroeconomic data, and that outcomes may still be uncertain, volatile, or affected by policy, shocks, and measurement limitations.

8.5 Appropriate use. You agree not to treat the Platform as a source of financial advice or as a substitute for professional advice. Any use of Platform outputs to inform decisions is at your sole risk.

9. Settlement sources and finality

9.1 Objective settlement sources. Each Forecast Question will specify objective sources used to determine outcomes (“Settlement Sources”), which may include official publications and other externally verifiable public data sources (for example, national statistics agencies, central banks, or international institutions).

9.2 Data revisions. Many economic indicators are revised. Unless Participation Rules state otherwise, we will typically rely on the first publication by the specified Settlement Source that meets the Forecast Question criteria at the scheduled settlement time. Later revisions generally do not retroactively change a settled outcome.

9.3 Delays and force majeure. If a Settlement Source delays publication, changes methodology, becomes unavailable, or publishes inconsistent data, we may (acting reasonably and in good faith) (a) defer settlement; (b) substitute a comparable objective source; (c) revise the resolution method for that Forecast Question; or (d) cancel the Forecast Question and unwind affected Forecast Allocations (including after deduction of non-refundable third-party payment costs where applicable), as specified in the Participation Rules.

9.4 Finality. Subject to Section 9.5, our determination of outcomes and distributions is final and binding for Platform purposes, including to maintain data integrity and prevent endless disputes.

9.5 Manifest error. We may correct a settlement if we identify a clear and material error. We may reverse or adjust distributions and records accordingly.

10. Platform integrity, prohibited conduct, and enforcement

10.1 Core principle. Forecast Arena is an economic research instrument. Manipulation—of forecasts, users, outcomes, or settlement processes—is treated as an integrity breach.

10.2 Prohibited conduct includes (without limitation):

- (a) using bots or automated scripts to create accounts, submit forecasts, or influence consensus indicators (except where we explicitly authorize through an API program);
- (b) multi-accounting, nominee participation, or account sharing;
- (c) collusion, coordinated manipulation, or attempts to mislead other Users;
- (d) fraud, identity misrepresentation, or use of stolen payment instruments;
- (e) attempting to influence or corrupt Settlement Sources, including bribery, coercion, or interference with official data publication;
- (f) exploiting bugs or vulnerabilities or attempting to reverse engineer restricted parts of the Platform;
- (g) harassment, hate speech, doxxing, or unlawful content;
- (h) using the Platform for money laundering, terrorism financing, sanctions evasion, or other illicit finance;
- (i) any activity that would reasonably expose Econsult to regulatory, reputational, or legal risk.

10.3 Monitoring. We may monitor activity for integrity and compliance, using automated and manual methods, and may request information from you.

10.4 Enforcement actions. We may impose measures including warnings, limits, feature restrictions, cancellation of Forecast Allocations, reversal of distributions, account suspension, or termination.

11. KYC, AML/CTF, sanctions, and compliance cooperation

11.1 Verification. We may require identity verification and ongoing verification, including enhanced due diligence, depending on feature access, transaction patterns, risk signals, and legal obligations.

11.2 Source-of-funds. We may request information regarding source of funds or other supporting documentation. Failure to provide satisfactory information may result in restrictions or termination.

11.3 Sanctions and restricted persons. You represent that you are not a sanctioned person and are not acting on behalf of a sanctioned person. We may screen you against sanctions and watchlists.

11.4 Suspicious activity and reporting. We may monitor and escalate suspicious activity, and may report to competent authorities where required. We may also freeze, delay, or refuse transactions while reviews are ongoing.

11.5 Record retention and cooperation. We may retain records as required for compliance and audit purposes and may cooperate with lawful requests from regulators, courts, and other competent authorities.

12. Data rights, publication of aggregated outputs, and user content

12.1 Platform outputs. The Platform may display consensus probabilities, sentiment indicators, forecast distributions, and related analytics derived from User participation.

12.2 Publication and commercialization. You acknowledge that aggregated outputs and derived analytics may be published (including publicly) and may be used in Econsult products and research offerings, including commercial offerings, subject to our Privacy Notice.

12.3 User content. If the Platform allows you to submit commentary, rationale, or other content (“User Content”), you grant Econsult a worldwide, non-exclusive, royalty-free license to host, store, reproduce, publish, translate, adapt, and distribute your User Content for Platform operation, moderation, research, and publication of Platform outputs, and to create derivative analytical works from it.

12.4 Attribution. We may attribute User Content to your chosen display name, and we may also anonymize or aggregate User Content for research integrity and safety.

12.5 Your responsibilities. You represent that you have rights to submit User Content and that it does not infringe third-party rights or violate law.

13. Intellectual property

13.1 Our IP. The Platform, including its software, brand, interfaces, and underlying analytics, are owned by or licensed to Econsult and are protected by intellectual property laws.

13.2 Limited license. We grant you a limited, revocable, non-transferable license to access and use the Platform for its intended forecasting and research purposes, subject to these Terms.

13.3 Restrictions. You may not copy, scrape (without authorization), reverse engineer, circumvent access controls, or create derivative works from protected Platform elements except as permitted by mandatory law or written permission.

14. Privacy

14.1 Privacy Notice. Our Privacy Notice explains how we process personal data, including for verification, fraud prevention, integrity monitoring, and publication of aggregated outputs.

14.2 Cross-border processing. Depending on service providers and user location, personal data may be processed across borders, subject to safeguards described in the Privacy Notice.

15. Suspension, cancellation, and termination

15.1 Our rights. We may suspend, restrict, cancel, reverse, or terminate accounts and Forecast Allocations where we reasonably believe it is necessary for compliance, fraud prevention, sanctions screening, dispute handling, operational integrity, technical error correction, or to protect Econsult, Users, or the public interest in data integrity.

15.2 Effect of termination. Upon termination, your right to access the Platform ceases. We may still retain and use aggregated outputs and anonymized data as described above, and may retain records as required.

15.3 No liability for enforcement. To the maximum extent permitted by law, we are not liable for losses arising from good faith enforcement actions taken under these Terms, including cancellations and reversals.

16. Disclaimers

16.1 Research nature; no advice. The Platform provides economic forecasting and research outputs and enables participation by Users. Nothing on the Platform is financial, investment, legal, tax, or any other regulated advice.

16.2 No guarantees. Forecast outcomes, consensus indicators, and analytics may be incomplete, revised, delayed, or incorrect. You use the Platform at your own risk.

16.3 Third-party sources. We are not responsible for errors, delays, or changes in third-party data sources, payment processors, or network services.

16.4 Availability. The Platform may be modified, interrupted, or discontinued, temporarily or permanently, for operational or compliance reasons.

17. Limitation of liability

17.1 Exclusion of indirect losses. To the maximum extent permitted by law, Econsult is not liable for indirect, consequential, special, punitive, or exemplary losses, including loss of profits, loss of goodwill, loss of data, or business interruption.

17.2 Cap. To the maximum extent permitted by law, Econsult's total liability arising out of or relating to the Platform and these Terms is limited to the total Service Fees paid by you to Econsult in the three (3) months preceding the event giving rise to the claim, or KES [•], whichever is lower.

17.3 Essential bargain. You acknowledge that the limitations in this Section are a fundamental basis of the agreement.

17.4 Mandatory rights. Nothing in these Terms limits any liability that cannot be lawfully excluded.

18. Indemnity

You agree to indemnify and hold harmless Econsult and its directors, officers, employees, contractors, and suppliers from claims, damages, liabilities, and expenses (including reasonable legal fees) arising out of or related to: (a) your breach of these Terms; (b) your User Content; (c) your misuse of the Platform; or (d) your violation of law or third-party rights.

19. Dispute resolution

19.1 Good faith resolution. Before filing any formal claim, you agree to contact us and attempt to resolve the matter informally.

19.2 Arbitration option. Unless prohibited by applicable law, disputes may be referred to arbitration seated in Nairobi under the rules of the Nairobi Centre for International Arbitration, by a single arbitrator, in English.

19.3 Court availability. Either party may seek interim injunctive relief in court to protect rights pending arbitration.

20. Governing law and jurisdiction

These Terms are governed by the laws of Kenya. Subject to Section 19, the courts of Kenya shall have jurisdiction.

21. Changes to these Terms

21.1 Updates. We may amend these Terms from time to time to reflect changes to the Platform, risk controls, law, or compliance posture.

21.2 Notice. We will post updated Terms on the Platform and may provide additional notice for material changes. Continued use after the effective date of updated Terms constitutes acceptance.

22. Miscellaneous

22.1 Severability. If any provision is held invalid or unenforceable, the remainder remains in effect.

22.2 No waiver. Failure to enforce a provision is not a waiver.

22.3 Assignment. You may not assign these Terms without our consent. We may assign to an affiliate or successor.

22.4 Entire agreement. These Terms (and incorporated policies) constitute the entire agreement regarding the Platform.

23. Contact

For support, complaints, or legal notices:

Email: [legal@econsultafrica.example]

Address: [Econsult Africa — Legal Address Placeholder, Nairobi, Kenya]

Phone: [•]

Clickwrap summary and language controls

Clickwrap summary

By taking a forecast position on Forecast Arena, you confirm that you have read and agree to the Terms of Use and Privacy Notice, and you acknowledge in particular that:

- Forecast Arena is an economic forecasting and research platform, not a gambling product, investment product, securities/derivatives market, or deposit-taking service.
- Any monetary participation (if enabled) is a transaction-specific engagement mechanism to encourage honest, informed forecasting; you may lose some or all of your participation amount.
- Econsult does not set odds, does not act as a bookmaker, and does not take the opposite side of user forecast positions.
- Outcomes are determined using objective, externally verifiable data sources, and Econsult's settlement determinations are final except for clear error.
- Econsult may require verification and may restrict, cancel, reverse, or suspend participation to protect compliance, integrity, and users.